

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

JAMELL BLACK,

Plaintiff,

-against-

CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; JAMES MALPESO,
DETECTIVE, SHIELD 2939; JOHN DOES 1-3,

Defendants.

SUMMONS

Plaintiff designates
Richmond County
as the place of trial

The basis of venue is based on
CPLR § 504(3)

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
April 5, 2023

/s/ Jessica Gorman
Jessica Gorman, Esq.
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Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

NEW YORK CITY POLICE OFFICER JAMES MALPESO, DETECTIVE, SHIELD 2939,
NARCOTIC BOROUGH STATEN ISLAND MAJOR CASE UNIT, 78 RICHMOND
TERRACE, ST. GEORGE, NY 10301-1905

NEW YORK CITY POLICE OFFICERS JOHN DOES 1-3, NARCOTIC BOROUGH STATEN
ISLAND MAJOR CASE UNIT, 78 RICHMOND TERRACE, ST. GEORGE, NY 10301-1905

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COUNTY OF RICHMOND

JAMELL BLACK,

Plaintiff,

-against-

CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; JAMES MALPESO,
DETECTIVE, SHIELD 2939; JOHN DOES 1-3,

Defendants.

VERIFIED COMPLAINT

**JURY TRIAL
DEMANDED**

JAMELL BLACK, by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK; NEW YORK CITY POLICE DEPARTMENT; JAMES MALPESO, DETECTIVE, SHIELD 2939; AND JOHN DOES 1-3, upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the United States Constitution.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

PARTIES

3. At all relevant times, Plaintiff resided in Richmond County, City and State of New York. He currently resides in Richmond County.

4. At all relevant times, Defendant CITY OF NEW YORK was a municipal corporation incorporated and existing under the laws of the State of New York, which operated, controlled, and managed Defendant New York City Police Department.

5. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT was and is an agency of Defendant City, and directly supervised the individually named Defendants.

6. Upon information and belief, at all relevant times, Defendant JAMES MALPESO, DETECTIVE, SHIELD 2939 was a police officer with the New York City Police Department, believed to be working out of the Narcotic Borough Staten Island and/or the 120th Precinct. This Defendant is sued in his individual and official capacities.

7. Upon information and belief, at all relevant times, Defendants JOHN DOES 1-3 were police officers with the New York City Police Department, believed to be working out of the Narcotic Borough Staten Island and/or the 120th Precinct. The identities of these Defendants are not yet known to Plaintiff. These Defendants are sued in their individual and official capacities.

8. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

9. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

FACTS

10. In the early morning hours of April 8, 2020, the Plaintiff, Jamell Black, was asleep at his mother's home in Staten Island. His brother, sister, mother, and cousin were also asleep in the home.

11. Suddenly, Mr. Black was awakened by about more than a dozen police officers bursting through the door. He thought he was dreaming, and before he could even orient himself as to what was happening, John Does 1-3 rushed him, began punching him in the face and chest, threw him on the floor, and handcuffed him.

12. Soon after, Mr. Black and his brother were put into a police vehicle. Upon information and belief, police then searched the home.

13. Police brought Mr. Black to the 120th precinct and charged him with the B felony of 3rd degree criminal possession of a controlled substance, and the misdemeanors of 2nd degree criminal use of drug paraphernalia, 4th degree criminal possession of a weapon, and 4th degree criminal possession of marijuana.

14. Defendant Detective James Malpeso signed the criminal complaint.

15. Upon information and belief, Defendant Malpeso charged Mr. Black with these crimes even though he lacked probable cause to believe Mr. Black committed them. Defendant Malpeso also caused Mr. Black's prosecution despite the lack of probable cause.

16. Mr. Black was arraigned later that day and released.

17. He attended approximately four court appearances while the case was pending.

18. The charges were eventually dismissed and terminated in his favor on October 19, 2020.

19. As a result of the excessive force, false arrest, and malicious prosecution, Mr. Black suffered bruising and swelling to his chest, and he continues to suffer from post-traumatic stress disorder, sleeping difficulties, hypervigilance, and extreme fear and panic when someone is at the door, or when he is near police.

20. Mr. Black also suffered the indignity of being arrested, held in custody, charged, and prosecuted for crimes he did not commit.

21. Defendants also took Mr. Black's iphone and his money and did not return either to him.

22. Not only do police officers in the Narcotics Borough Staten Island have long, documented histories of various constitutional abuses of citizens, but Defendant Detective Malpeso specifically has an extensive history.

23. Upon information and belief, he was disciplined for abusing his authority by unlawfully entering and searching a premises in 2021.

24. He has also been a named defendant in at least 14 lawsuits, 11 of which have settled for a total of more than \$800,000.

25. They include: James Wilson v. City of New York, et. al.; EDNY 13-cv-05743; Cummings v. City of New York, et. al.; SDNY 13-cv-00640; Gibson et. al. v. City of New York, et. al.; EDNY 12-cv-04114; Garcia v. City of New York, et. al.; EDNY 12-cv-01707; Ross et. al. v. City of New York, et. al.; EDNY 11-cv-01958; Gbor v. City of New York, et. al.; EDNY 11-cv-02824; Patterson et. al. v. City of New York, et. al.; EDNY 10-cv-00231; Bunche v. City of New York, et. al, SDNY 10-cv-05731; Davis et al. v. City of New York, et. al.; EDNY 10-cv-01260; Humphreys et. al. v. City of New York, et. al., EDNY 10-cv-03011; Santori v. City of New

York, et. al.; EDNY 07-cv-04873.

26. The patterns of behavior are consistent in every one of these settled lawsuits: Defendant Malpeso and his co-defendants were charged with some combination of illegally stopping the plaintiff(s) or entering their homes, illegally searching them and/or their homes or cars, conducting illegal and gratuitously humiliating strip and body searches, including in public, excessive force, threatening plaintiffs to disclose the location of alleged drugs, falsifying charges to cover up their actions, and causing prosecutions despite knowing the charges were false.

27. Upon information and belief, Defendant Malpeso is also a named defendant in at least two other federal lawsuits which are currently pending.

28. In the last decade alone, there have been more than 144 allegations of various constitutional abuses substantiated (the conduct occurred and violated NYPD rules) or exonerated (the conduct occurred but did not violate NYPD rules) against members of the Narcotic Borough Staten Island. These abuses include a large number of charges of illegal stops of people and cars, illegal searches of people, cars, and homes, and excessive force, among other things.

29. Several of the officers have multiple such charges, including one with at least 19, another with 15, another with 12, and others with more than 5.

30. Additionally, at least 26 officers, including Defendant Malpeso from this unit have been named defendants in more than 100 successful or pending lawsuits in state and federal courts. Yet, it appears that very, very few of them have ever been disciplined.

CAUSES OF ACTION

FIRST CAUSE OF ACTION AGAINST DEFENDANTS JOHN DOES 1-3
PURSUANT TO 42 U.S.C. § 1983

EXCESSIVE FORCE

31. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

32. As set forth above, Defendants John Does 1-3 punched Mr. Black for no apparent reason whatsoever, and even though he was barely even awake, and not at all resisting or posing any threat.

33. This violated Mr. Black's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

**SECOND CAUSE OF ACTION AGAINST DEFENDANTS MALPESO AND
JOHN DOES 1-3
PURSUANT TO 42 U.S.C. § 1983
FALSE ARREST**

34. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

35. As set forth above, these Defendants arrested Mr. Black, then brought false charges against him without probable cause and for crimes he did not commit.

36. This violated Mr. Black's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

**THIRD CAUSE OF ACTION AGAINST DEFENDANTS MALPESO AND JOHN DOES 1-3
PURSUANT TO 42 U.S.C. § 1983
MALICIOUS PROSECUTION**

37. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

38. As set forth above, these Defendants knowingly and intentionally caused Mr. Black to be prosecuted without probable cause and without legal justification.

39. This violated Mr. Black's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK AND
NYPD
PURSUANT TO 42 U.S.C. § 1983
**IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID
VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

40. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

41. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the police department on a variety of subjects including detentions and arrests, searches and seizures, prosecution, and other areas of importance to the Constitutional rights of citizens.

42. In the alternative, and upon information and belief, the City and Police Department have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens by failing or refusing to enforce them.

43. Upon information and belief, the City and Police Department have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens.

44. As set forth above, Defendants John Does 1-3 used excessive force against Mr. Black and they and Defendant Malpeso knowingly and intentionally arrested and charged him, then caused him to be prosecuted without probable cause, without legal justification, and on false charges.

45. Upon information and belief, these Defendants took these actions with the knowledge and implicit approval of their supervisors. As detailed above, incidents like these are part of a larger pattern and practice in the Staten Island Narcotic Borough, and in the NYPD as a whole. Police officers in this unit, including Detective Malpeso have long histories of violating the civil rights of citizens with near complete impunity.

46. Given the numerous substantiated and exonerated charges and numerous successful lawsuits brought against officers in this unit, the City and NYPD know violations are routinely happening and have turned a blind eye to them, thereby allowing them to continue. The City and NYPD have also specifically failed to more closely examine the Defendant officers' actions with regard to Mr. Black or completely turned a blind eye to their violations. They did this despite the fact that serious questions should have been raised, especially in light of Detective Malpeso's history.

47. Defendants City of New York and the New York City Police Department failed to more closely supervise or monitor these Defendants or to provide extra training or take any other remedial or preventative steps to ensure they acted in compliance with the law.

48. The violations against Mr. Black occurred in accordance with the practices, policies, and customs of violating citizens' constitutional rights, and through the City and NYPD's

failures to act on information that violations were occurring, and its gross negligence in supervising subordinates, including the individually named Defendants here.

49. These actions and inactions violated Mr. Black's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

DEMAND FOR JURY TRIAL

50. Plaintiff hereby demands a jury trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;
- B. A judgment for punitive damages against all individual Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: New York, New York
April 5, 2023

/s/ Jessica Gorman
Jessica Gorman, Esq.
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ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are communications with others known to me, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: New York, New York
April 5, 2023

/s/ Jessica Gorman
Jessica Gorman, Esq.